DV-160 Request to Keep Minor's Information Confidential

CONFIDENTIAL

Clerk stamps date here when form is filed.

Fill in court name and street address:

Superior Court of California, County of

Court fills in case number when form is filed.

Case Number:

When do I use this form?
Complete this form if you want the court to keep information about a minor in a domestic violence restraining order proceeding confidential and not available to the public or the restrained person. If you only want to keep your home address confidential, you may use a mailing address on your other forms rather than using this form.

What if there is information I don't want the restrained person to have?
You can make this request at item (8) if you want to ask the court to keep information confidential from the restrained person. If the court grants your request to keep certain information confidential from the restrained person, the information will have to be redacted (whited or blacked out) from all forms before the restrained person gets a copy. But be aware that if the court denies your request, the information may be provided to the restrained person.

Who will see this form?
The public will NOT have access to this form.
The restrained person will have access to the entire form unless the court grants item (8) on this form.

(1) Parties in This Case

a. Person who requested restraining order (form DV-100, item (1)):

Full Name: _____

b. Person to be restrained (form DV-100, item (2)):

Full Name: _____

(2) Person Making Request for Confidentiality

a. Full Name: _____

b. I am:

(1) ☐ The minor requesting confidentiality.

(2) ☐ The ☐ parent ☐ legal guardian of the minor or minors listed below.

List all the minors that you are making the request for:

Name: _____

Name: _____

Name: _____

Name: _____

☐ *Check here if there are additional minors. Attach a sheet of paper and write "Attachment 2b(2)—Additional Minors" for a title.*

This is not a Court Order.

Case Number:

3 Contact Information

Address where you can receive mail

This address will be used by the court and the person in 2 to notify you in this case. If you want to keep your home address private, you can use another address like a post office box or another person's address, if you have their permission. If you have a lawyer, give your lawyer's address and contact information.

Address: _____

City: _____ State: _____ Zip: _____

Your contact information (*optional*)

Telephone: _____ Fax: _____

E-mail address: _____

Lawyer's information (*skip if you do not have one*)

Name: _____ State Bar No.: _____

4 ☐ Requests for More Than One Minor *(only for parents or legal guardians)*

I am making this request for two or more minors.

a. ☐ The information I want confidential (as checked in item 5) is the SAME for all minors.

b. ☐ The information I want confidential (as checked in item 5) is NOT the same for all minors.

(If you checked 4b, make sure you list all the information you want confidential for each minor in 5. If you need more space in 5, attach a separate piece of paper.)

5 Information to Be Kept Confidential from the Public

I want the information checked below to be made confidential and NOT available to the public.

(Check all that apply)

a. ☐ **Minor's name**

(Note: If your request is granted, the public will not have access to the minor's name in this case, but law enforcement must be given this information.)

b. ☐ **Minor's address**

(Note: You do NOT have to make this request if you use a mailing address that does not need to be kept confidential. Use that mailing address on all forms in this case and any other civil case.)

The address I want kept confidential is:

_____

_____

This is not a Court Order.

c. ☐ **Information relating to the minor**

(!) (Note: If information relating to the minor is made confidential by the court, the public will not have access to this information but the restrained person must be given the information that is necessary to comply with the restraining order and to respond to the restraining order request. Also, the court may give permission to release confidential information in this case to other people like the minor's childcare provider or school, or anyone who needs the information to protect the minor's best interest or to prevent abuse.)

Describe all information in the documents that will be filed that you want kept confidential.

You may either *(check one):*

(1) ☐ Attach a copy of form DV-100 or other document that you are filing. Circle all the information you want kept confidential.

(2) ☐ List the information below, identifying the location of the statements in form DV-100 or other document that you are filing.

Location of Information *(for example, form #, page #, paragraph #, line #, attachment #, or exhibit #)*	**Information to Be Redacted** *(not viewable by the public)*
(a)	
(b)	
(c)	
(d)	

☐ *Check here if there is not enough space for your answer. Put your complete answer on an attached sheet of paper, and write "Attachment 5c(2)" for a title.*

This is not a Court Order.

6 Reasons for Request

To approve your request in 5, the court must expressly find all of the following:

- The minor's right to privacy overcomes the public's right to access the information;
- There is a substantial probability that the minor's interest will be prejudiced if the information is not kept confidential;
- The order to keep the information confidential is narrowly tailored; and
- No less restrictive means exist to protect the minor's privacy.

Use these four requirements to help you answer the questions below.

a. Why should the information about the minor provided in item 5 be kept private or confidential from the public?

☐ *Check here if there is not enough space for your answer. Put your complete answer on an attached sheet of paper, and write "Attachment 6a" for a title.*

b. What do you think would happen if the information was NOT made private or confidential?

☐ *Check here if there is not enough space for your answer. Put your complete answer on an attached sheet of paper, and write "Attachment 6b" for a title.*

This is not a Court Order.

(*Skip item 7 and 8d if you are **not** requesting a restraining order at the same time as this request.*)

7 If any portion of the request for confidentiality from the public (item 5) is denied, I want to *(check one):*

a. ☐ **Cancel my request for restraining order**
I ask the court NOT to make a decision on my *Request for Domestic Violence Restraining Order* (form DV-100). I understand that cancelling my request means that I will not receive a restraining order at this time. *(Note: You may file a request on the same or different facts at a later date.)*

b. ☐ **Move forward with my request for restraining order**
I ask the court to make a decision on my *Request for Domestic Violence Restraining Order* (form DV-100). *(Note: Choosing this option means that all of the information in your completed form DV-100 and other court papers in this case will be available to the public and must be seen by the restrained person.)*

8 ☐ Information to Be Kept Confidential from the Restrained Person

(Note: The restrained person must be given information necessary to comply with the restraining order and to respond to the restraining order request.)

I do not want the restrained person to have access to some of the information checked in item 5.

a. What information do you want to be confidential and not given to the restrained person?

(1) ☐ Minor's name

(2) ☐ Minor's address

(3) ☐ Other information relating to the minor from item 5 *(specify):*

b. Why should the information listed in 8a be kept confidential and not given to the restrained person?

c. What do you think would happen if the information listed in 8a is given to the restrained person?

☐ *Check here if there is not enough space for your answer. Put your complete answer on an attached sheet of paper, and write "Attachment 8" for a title.*

This is not a Court Order.

d. ☐ If any portion of the request for confidentiality from the restrained person (item 8) is denied, I want to:

(1) ☐ **Cancel my request for restraining order**
I ask the court NOT to make a decision on my *Request for Domestic Violence Restraining Order* (form DV-100). I understand that canceling my request means that I will not receive a restraining order at this time. *(Note: You may file a request on the same or different facts at a later date.)*

(2) ☐ **Move forward with my request for restraining order**
I ask the court to make a decision on my *Request for Domestic Violence Restraining Order* (form DV-100). (*Note: Choosing this option means that all of the information in your completed form DV-100 and other court papers in this case must be seen by the restrained person.)*

9 People I Want To Have Access To Confidential Information

(Note: If you want other people to have unredacted copies of restraining order forms in this case, you should complete this item.)

a. If my request in item 5 is granted, I want to be allowed to give the following people or entities *(check all that apply)*:

(1) ☐ Minor's school and after-school program
(2) ☐ Minor's childcare provider
(3) ☐ Supervised visitation provider
(4) ☐ Other (*name of person or entity*): _____

b. copies of documents from this case with the following information *(check all that apply)*:

(1) ☐ Minor's name
(2) ☐ Minor's address
(3) ☐ Information listed in item 5c.

10 Number of pages attached to this form, if any: _____

11 Signature

I declare under penalty of perjury under the laws of the State of California that the information above and all attached papers are true and correct.

Date: _____

_____ ▶ _____
Type or print your name | Sign your name

12 Lawyer's Signature (*skip if you do not have one*)

Date: _____

▶ _____
Lawyer's signature

This is not a Court Order.

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